

1 ENGROSSED SENATE
2 BILL NO. 1592

By: Rosino and Reinhardt of the
Senate

3 and

4 Stinson of the House

5
6 [insurance - excessive - discriminatory - rates -
7 information - submissions - notice - consideration -
8 hearing - burden - premium return - interest - time
9 period - discontinuance - effective date]

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. AMENDATORY 36 O.S. 2021, Section 985, is
12 amended to read as follows:

13 Section 985. ~~Rate-making Standards.~~ A. A rate may not be
14 excessive, inadequate or unfairly discriminatory.

15 1. ~~No rate in a competitive market may be determined to be~~
16 ~~excessive.~~ A rate ~~in a noncompetitive market~~ may be determined to
17 be excessive if ~~it~~, based on actuarial review, the rate is likely to
18 produce a profit that is unreasonably high for the insurance
19 provided. The Insurance Commissioner shall send an objection to the
20 insurer and shall give the insurer the opportunity to respond and
21 provide additional supporting information prior to making a final
22 determination that the rate is excessive.

23 2. A rate may not be determined to be inadequate unless:
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1 a. the rate is clearly insufficient to sustain projected
2 losses, expenses and special assessments, and

3 b. the rate is unreasonably low and use of the rate by
4 the insurer has tended or, if continued, will tend to
5 create a monopoly in the market.

6 3. Unfair discrimination may be determined to exist if, after
7 allowing for practical limitations, price differentials fail to
8 reflect equitably the differences in expected losses and expenses.
9 A rate may not be determined to be unfairly discriminatory because
10 different premiums result for policyholders with like loss exposures
11 but different expense levels, or like expenses but different loss
12 exposures, or if it averaged broadly among persons insured within a
13 group, franchise or blanket policy or a mass-marketed plan. No rate
14 in a competitive market shall be considered unfairly discriminatory
15 unless it classifies risk on the basis of race, color, creed, ~~or~~
16 national origin, or religion.

17 B. In determining whether rates in a noncompetitive market are
18 excessive, inadequate, or unfairly discriminatory, due consideration
19 may be given to:

20 1. Past and prospective loss experience within and outside this
21 state, in accordance with accepted actuarial principles;

22 2. Conflagration and catastrophe hazards;

23 3. A reasonable margin for underwriting profit and
24 contingencies;

1 4. Loadings for leveling premium rates over time for dividends,
2 savings or unabsorbed premium deposits allowed or returned by
3 insurers to their policyholders, members or subscribers;

4 5. Past and prospective expenses both countrywide and those
5 specially applicable to this state; and

6 6. Provisions for special assessments; and to all other
7 relevant factors including judgment within and outside this state.

8 C. Risks may be grouped by classifications for the
9 establishment of rates and minimum premiums. Classification rates
10 may be modified to produce rates for individual risks in accordance
11 with rating plans which establish standards for measuring variations
12 in hazards or expense provisions, or both. Such standards may
13 measure any differences among risks that can be demonstrated to have
14 a probable effect upon losses or expenses. No risk classification,
15 however, may be based on race, color, creed, national origin, or the
16 religion of the insured.

17 D. The expense provisions included in the rates for use by an
18 insurer or group of insurers may differ from those of any other
19 insurer or group of insurers to reflect the requirements of the
20 operating methods of the insurer or group of insurers.

21 E. The rates may contain provision for contingencies and an
22 allowance permitting a reasonable profit. In determining the
23 reasonableness of the profit, consideration shall be given to the
24 investment income attributable to the line of insurance.

1 F. Risks may be classified in any way except that no risk may
2 be classified on the basis of race, color, creed, ~~or~~ national
3 origin, or religion of the insured.

4 SECTION 2. AMENDATORY 36 O.S. 2021, Section 987, is
5 amended to read as follows:

6 Section 987. ~~Rate Filings.~~ A. In a competitive market, every
7 insurer shall file with the Insurance Commissioner all rates ~~and,~~
8 supplementary rate information ~~to be used in this state no later~~
9 ~~than thirty (30) days after the effective date; provided, that the~~
10 ~~rates and supplementary rate information need not be filed for~~
11 ~~commercial risks, which by general custom are not written according~~
12 ~~to manual rules or rating plans.~~

13 ~~B. In a noncompetitive market, every insurer shall file with~~
14 ~~the Commissioner all rates, supplementary rate information and~~
15 ~~supporting information at least thirty (30) days before the proposed~~
16 ~~effective date. The Commissioner may give written notice, within~~
17 ~~thirty (30) days of receipt of the filing, that the Commissioner~~
18 ~~needs additional time, not to exceed thirty (30) days from the date~~
19 ~~of the notice to consider the filing. Upon written application of~~
20 ~~the insurer, the Commissioner may authorize rates to be effective~~
21 ~~before the expiration of the waiting period or an extension thereof.~~
22 ~~A filing shall be deemed to meet the requirements of the Property~~
23 ~~and Casualty Competitive Loss Cost Rating Act and to become~~
24 ~~effective unless disapproved pursuant to this title by the~~

1 ~~Commissioner before the expiration of the waiting period or an~~
2 ~~extension thereof.~~

3 ~~In a noncompetitive market, the filing shall be deemed in~~
4 ~~compliance with the filing provision of this section unless the~~
5 ~~Commissioner informs the insurer within ten (10) days after receipt~~
6 ~~of the filings as to what supplementary rate information or~~
7 ~~supporting information is required to complete the filing.~~

8 ~~C. Every authorized insurer shall file with the Commissioner,~~
9 ~~except as to rates for those lines of insurance exempted from the~~
10 ~~provisions of the Property and Casualty Competitive Loss Cost Rating~~
11 ~~Act by the Commissioner under subsections E and F of this section~~
12 ~~and except for those risks designated as special risks under Section~~
13 ~~997 of this title, all rates, supplementary rate information and any~~
14 ~~changes and amendments which it proposes to use. An insurer may~~
15 ~~file its rates by either filing its final rates or by filing a~~
16 ~~multiplier and, if applicable, an expense constant adjustment to be~~
17 ~~applied to prospective loss costs that have been filed by an~~
18 ~~advisory organization as permitted by this title. Such loss cost~~
19 ~~multiplier filing and expense constant filings made by insurers~~
20 ~~shall remain in effect until amended or withdrawn by the insurer.~~
21 ~~Every filing shall state the effective date.~~

22 ~~D. Under rules as may be adopted, the Commissioner may, by~~
23 ~~written order, suspend or modify the requirement of filing as to any~~
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1 ~~kind of insurance, subdivision or combination thereof, or as to~~
2 ~~classes of risks.~~

3 ~~E. Notwithstanding any other provision of the Property and~~
4 ~~Casualty Competitive Loss Cost Rating Act, upon the written consent~~
5 ~~of the insured in a separate written document, a rate in excess of~~
6 ~~that determined in accordance with the other provisions of the~~
7 ~~Property and Casualty Competitive Loss Cost Rating Act may be used~~
8 ~~on a specific risk.~~

9 ~~F. A filing and any supporting information required to be filed~~
10 ~~shall be open to public inspection once the filing becomes effective~~
11 ~~except information marked confidential, trade secret, or proprietary~~
12 ~~by the insurer or filer and except the filings of an advisory~~
13 ~~organization which shall be open to public inspection upon the~~
14 ~~received date of the rate, loss cost, or manual rule change. The~~
15 ~~insurer or filer shall have the burden of asserting to the~~
16 ~~Commissioner that a filing and supporting information are~~
17 ~~confidential, upon the request of the Commissioner. The~~
18 ~~Commissioner may disapprove of the insurer's request for~~
19 ~~confidential filing status, and supporting information for the rates~~
20 ~~and for the risks that are to be written in this state, and any~~
21 ~~additional information or documentation requested by the~~
22 ~~Commissioner specific to this state. All rates, supplementary~~
23 ~~information, and supporting information shall be filed thirty (30)~~
24 ~~days prior to the effective date of such rate. A filing shall be~~

1 deemed to meet the requirements of this act and may become
2 effective:

3 1. Upon the expiration of the waiting period unless objected to
4 or disapproved by the Commissioner; or

5 2. Prior to expiration of the waiting period, upon application
6 by the insurer that has been approved by the Commissioner.

7 B. In a competitive market, if the Commissioner determines,
8 after a notice or by agreement, that an insurer's rates require
9 closer supervision, the insurer shall file with the Commissioner all
10 rates, supplementary information, and supporting information
11 prescribed by the Commissioner at least sixty (60) days prior to the
12 effective date of such rates. The insurer may request a hearing
13 before the Commissioner or an independent hearing examiner to
14 determine the reasonableness of the Commissioner's action by written
15 request upon the Commissioner within thirty (30) days of the notice
16 of the Commissioner requiring closer supervision of such insurer.

17 C. In a noncompetitive market, every insurer shall file with
18 the Commissioner all rates, supplementary information, and
19 supporting information for the rates and for the risks that are to
20 be written in this state, and any additional information or
21 documentation requested by the Commissioner specific to this state
22 for such market. All rates, supplementary information, and
23 supporting information shall be filed at least sixty (60) days prior
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1 to the effective date of such rates. A filing shall be deemed to
2 meet the requirements of this act and may become effective:

3 1. Upon the expiration of the waiting period unless disapproved
4 by the Commissioner; or

5 2. Prior to expiration of the waiting period, upon application
6 by the insurer that has been approved by the Commissioner.

7 D. If a private passenger automobile, homeowner's multi-peril,
8 or dwelling fire policy's overall rate is increased pursuant to the
9 provisions of this section, the Commissioner shall publish notice of
10 such rate increase and overall percentage of such rate increase on
11 the Insurance Department's website.

12 SECTION 3. AMENDATORY 36 O.S. 2021, Section 989, is
13 amended to read as follows:

14 Section 989. ~~Improper Rates; Disapproval; Hearing.~~ A. ~~Basis~~
15 ~~for disapproval.~~

16 ~~1.~~ The Insurance Commissioner shall disapprove a rate ~~in a~~
17 ~~competitive market~~ only if the Commissioner finds, pursuant to
18 subsection B of this section, that the rate is excessive,
19 inadequate, or unfairly discriminatory pursuant to Section 985 of
20 this title.

21 ~~2.~~ ~~The Commissioner may disapprove a rate for use in a~~
22 ~~noncompetitive market only if the Commissioner finds, pursuant to~~
23 ~~subsection B of this section, that the rate is excessive, inadequate~~
24 ~~or unfairly discriminatory under this subsection.~~

1 B. ~~Procedures for disapproval.~~

2 1. Prior to the expiration of a waiting period ~~or an extension~~
3 ~~thereof, made~~ pursuant to ~~subsection B of~~ Section 987 of this title,
4 the Commissioner may disapprove, by written order, rates filed
5 pursuant to ~~subsection B of~~ Section 987 of this title with notice
6 and opportunity for a hearing. The order shall specify in what
7 respects the filing fails to meet the requirements of ~~this act~~ the
8 Property and Casualty Competitive Loss Cost Rating Act. Any insurer
9 whose rates are disapproved pursuant to this section shall be given
10 a hearing upon written request made within thirty (30) days of
11 disapproval.

12 2. If, at any time after the rate goes into effect, the
13 Commissioner finds that a rate applicable to insurance ~~sold in a~~
14 ~~noncompetitive market~~ does not comply with the standards set forth
15 in Section 985 of this title, the Commissioner may, after a hearing
16 held upon not less than twenty (20) days' written notice, issue an
17 order pursuant to subsection C of this section, disapproving such
18 rate. The hearing notice shall be sent to every insurer and
19 advisory organization that adopted the rate and shall specify the
20 matters to be considered at the hearing. ~~The disapproval order~~
21 ~~shall not affect any contract or policy made or issued prior to the~~
22 ~~effective date set forth in the order.~~

23 3. ~~If, at any time, the Commissioner finds that a rate~~
24 ~~applicable to insurance sold in a competitive market is inadequate~~

1 ~~or unfairly discriminatory under paragraph 2 or 3 of subsection A of~~
2 ~~Section 985 of this title, the Commissioner may issue an order~~
3 ~~pursuant to subsection C of this section disapproving the rate. The~~
4 ~~order shall not affect any contract or policy made or issued prior~~
5 ~~to the effective date set forth in the order.~~

6 C. ~~Order of disapproval.~~

7 If the Commissioner disapproves a rate pursuant to subsection B
8 of this section, the Commissioner shall issue an order within thirty
9 (30) days of the close of the hearing specifying in what respects
10 the rate fails to meet the requirements of ~~this act~~ the Property and
11 Casualty Competitive Loss Cost Rating Act. The order shall state an
12 effective date no sooner than thirty (30) business days after the
13 date of the order when the use of the rate shall be discontinued.
14 This order shall not affect any policy made before the effective
15 date of the order.

16 D. ~~Appeal of orders and establishment of reserves.~~

17 If an order of disapproval is appealed pursuant to Section 990
18 of this title, the insurer may implement the disapproved rate upon
19 notification to the court, in which case any excess of the
20 disapproved rate over a rate previously in effect shall be placed in
21 a reserve established by the insurer. The court shall have control
22 over the disbursement of funds from such reserve. The funds shall
23 be distributed as determined by the court in its final order except
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1 that de ~~minus~~ minimis refunds to policyholders shall not be
2 required.

3 E. All determinations made by the Commissioner under this
4 section shall be on the basis of findings of fact and conclusions of
5 law.

6 SECTION 4. This act shall become effective July 1, 2027.

7 Passed the Senate the 25th day of March, 2026.

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9 _____
10 Presiding Officer of the Senate

11 Passed the House of Representatives the ____ day of _____,
12 2026.

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15 Presiding Officer of the House
16 of Representatives
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